THE STATE

Versus

NEVERSON MOYO

HIGH COURT OF ZIMBABWE
MUTEVEDZI AND NDHLOVU JJ
BULAWAYO, 13 June 2026

Criminal review judgment

MUTEVEDZI J*:* These proceedings were placed before me on automatic review in terms of Section 57 of the Magistrates Court Act [Chapter 7:10] ("the MCA").

[1] Neverson Moyo ("the offender") appeared before the court of a regional magistrate facing a count of attempted murder as defined in terms of section 189(1) as read with section 47 (1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] ("the CODE"). He pleaded not guilty to the charge but was convicted after a full trial. He was sentenced to 6 years imprisonment of which 2 years imprisonment was suspended for 5 years on condition of good behavior. This means he will serve an effective 4 years imprisonment.

[2] The facts and evidence before the trial court established that on the material date, the offender struck the complainant once on the neck with a stone, causing her to lose consciousness. Thereafter, the offender threw further stones at the complainant but missed her. The complainant was medically examined and the medical evidence established that the complainant sustained *"bruises on left side of neck, tenderness on palapation"*. The medical practitioner considered the injuries to be serious and that severe force was used. As a result, the medical practitioner concluded that *"there is danger to life due to the position of injury near the important vessels (carotid artery)"*.

[3] When the record was placed before me, I sought the trial magistrate's comments on the following issues:

> "The offender in this case was convicted on a charge of attempted murder. The charge sheet appears not to state that he attempted to murder the complainant. Why did the trial magistrate proceed on that defective charge? Further, the offender hit the complainant with a stone once. Could that amount to an attempt to murder the complainant? When a doctor attended to the complainant, he noted that the injuries sustained were simply 'bruises on the left side of the neck' and tenderness in the same

> region. Did the weapon used, the part of the body aimed at and the findings by the doctor support the conclusion that the offender attempted to kill the complainant?

[4] In his response, the trial magistrate conceded that the charge was not properly formulated. He said:

> "The charge sheet avers that the accused unlawfully and intending to cause the death of Shylet Zveushe either intending to kill or realizing that there was a real risk or possibility that his conduct might cause her death by hitting Shylet Zveushe with a stone once on the left side of the neck. I do realise the repetition make is sound clumsy. However, I stand guided. I understood it to mean that the accused attempted to murder the complainant. I had suggested the removal of the underlined part but forgot to do so."

[5] I pause to harness that as much as the framing of the charge is solely the duty for the prosecution, the trial magistrate must satisfy himself/herself that the prosecution properly undertook its function. The charge must be clearly and correctly formulated to fully inform the accused of the case he/she must meet. The charge must properly describe the offence, correctly cite the statutory provision allegedly violated, show correspondence of particulars with the legal provisions of the cited offence and pleading/s of any aggravating factors such as use of a weapon. Grammatical errors and repetition of words especially those which complete change the meaning of the charge, are not expected and cannot be overlooked. If they are, an accused ends up pleading to a charge which he/she does not even understand.

[6] Regarding the evidence to establish the charge of attempted murder, the trial magistrate maintains that the cumulative evidence gathered during the trial proved the charge of attempted murder beyond reasonable doubt. He said:

> "Indeed, the offender hit the complainant once with a stone, however, the evidence shows that he did not only throw a single stone. In fact, having struck her unconscious he pursued her and threw more stones, missing her as she was being dragged away. One of the stones which missed the complainant hit her sibling according to the witnesses. My reasoning was that the fact that he continued to throw stones at an unconscious person, he either intended to cause her death or at least saw the possibility. Had he no such intention, he should have stopped upon realizing that complainant had fallen to the ground and was unconscious.
> The position he struck according to the doctor is the reason why he concluded that there was danger to life due to the important vessels there, I refer to exhibit 1. According to the complainant the vein which was narrowly missed by the offender would have caused her death. It is my humble opinion that looking at the evidence, the offender managed to hit her with one stone but did not stop, he only missed, the position according to the doctor is critical and the weapons used, several stones aimed at the upper part of the body, I believe supports the conclusion that he attempted to cause her death."

The law

[7] In this jurisdiction, a conviction for attempted murder requires proof beyond reasonable doubt that the offender intended to kill the complainant. That intention may take the form of direct intent *(dolus directus)* or the realization of a real risk or possibility that the conduct complained

of could cause death but nonetheless proceeding with the conduct despite the risk or possibility. In *S v Mugwanda* 2002 (1) ZLR 574 (S), the Supreme Court emphasized that intention to kill is the essential element of attempted murder and must be inferred from all surrounding circumstances including the nature of the weapon, the manner of its use, the part of the body targeted and the severity of the injuries inflicted. Similarly, in *Mupande* v *The State* SC82-14, it was held that where there is no direct evidence as to the intention of the accused such intention can be inferred from the surrounding circumstances. In *Mangoma* v *The State* SC36-20, the Court laid out the test of actual intention as follows:

> "a) Either that the accused desired to bring about the death of the victim and succeeded in his or her purpose; or
> b) Whilst pursuing another objective the accused foresees the death of the victim as a substantially certain result of that activity and proceeds regardless."

[8] Further, guidance is found in *S* v *Sibanda* HB35-14 were the Court stated:

> "Further, there must be actual or legal intention to kill. There is actual intention where the accused desires the death, that is death is his aim and object. There will also be actual intention where death is not the aim and object, but accused continued to engage in an activity which he realizes will almost certainly result in death.
>
> There will be legal intention where an accused does not mean to bring about death but continues to engage in an activity after he foresees that there is a real risk that the activity will result in the death of a person. Its elements are;
>
> (a) subjective foresight;
> (b) of the real possibility of death, and
> (c) recklessness."

[9] The courts have consistently emphasized caution in drawing inferences of intent. The intention, particularly must be established subjectively, and not by speculation based on what might have happened or what a reasonable person might have foreseen. Likewise, the inference of intent to kill must be inescapable, having regard to all the surrounding circumstances.

Application of the law to the facts

I. The weapon used

[10] In the present matter, the assault consisted of a single blow delivered with a stone. While a stone can be a dangerous weapon, it is not on its own, a lethal weapon. The law requires the court to interrogate its size, force and manner of use. There is no evidence that the stone was of such a size and the blow of such severity to draw the inference that it was lethal. There is no indication that the assault was repeated, forceful to an extreme degree, or accompanied by

conduct betraying a determination to kill. In *S* v *Mhlanga* HB 02-18, the court held that a single blow, absent of aggravating features, will seldom justify an inference of intent to kill. MOYO J said:

> "In this case the accused and deceased fought, they were restrained, they were both drunk, accused used a hoe handle and dealt a single blow on the deceased. We were not favoured with the size and dimensions of the hoe handle and without its size and weight you cannot hold that from its usage only an intention to kill can be deduced. This case is a straightforward culpable homicide like any other knobkerrie, village wooden stool, log, single blow cases onto the head. That the blow was on the head and resulted in a fracture would not on its own amount to an intention to kill." (my emphasis)

ii. The body part targeted

[11] Undoubtedly, the neck is a vital and vulnerable part of the body, and a forceful blow thereto may justify an inference of intent to kill. However, this factor cannot be considered in isolation like the trial magistrate did. In *S* v *Chikozho* SC121-84, it was held that while the targeting of a vulnerable part of the anatomy (like the head or neck or chest) is a strong indicator of intent, it must be weighed against other circumstantial factors to determine if the accused truly intended to kill or merely acted recklessly. The inference of intent to kill must still be supported by the degree of violence employed and the resulting injuries. I must reinforce that the targeting of a vulnerable body part is not definitive proof of an intent to kill, but rather one factor in a broader inferential inquiry. At all times, the inference of intent must still be consistent with the degree of force used and the resulting harm.

iii. The nature and extent of injuries

[12] The medical evidence is of decisive importance. In the instant case, the complainant's injuries were limited to bruising and tenderness. There was no evidence of fractures, no internal injury, and no life -threatening condition. In *S* v *Jongwe* 2002 (2) ZLR 209 (S), it was held that multiple blows directed at vulnerable parts of the body justify an inference of intent to kill. By implication, the absence of serious life -threatening injuries may militate against a finding of intent to kill, particularly where the assault itself was not persistent or brutal. This is an indication that where injuries are superficial, the inference of intent to kill becomes tenuous unless supported by other compelling factors. In this instant case, the temporary loss of

consciousness by the complainant, while concerning, is not in itself determinative of an intention to kill, particularly in the absence of serious physical trauma.

iv. The subsequent conduct of the offender

[13] After the single blow, the offender admittedly threw more stones at the complainant who had fallen but the stones missed their target. There is no evidence of pursuit and persistence with the attack, close-range continuation of the assault, or any attempt to ensure fatal consequences. In *S v Sibanda* HB139-18, it was emphasized that post-assault conduct can either reinforce or weaken the inference of intent. The Court said:

> "It is remarkable that the accused attempted first aid on the deceased immediately after the fatal assault which suggests that he certainly did not have the actual intention to cause the death of the deceased."

In my view, continued and relentless assault may support an inference of intent to kill, whereas its absence may point to a lesser intention. Here, it does not demonstrate persistence consistent with a murderous design.

[14] In analysis, when all factors are considered cumulatively, the following emerges; the offender delivered a single blow with a stone, the injuries sustained were minor and non-life threatening, there was no sustained or focused attack directed at ensuring death and the subsequent conduct (throwing stones and missing) does not demonstrate a clear resolve to kill. While it is possible that death could have ensued, the test is not possibility, but whether the accused foresaw death as a real risk and reconciled himself to that outcome. The present facts do not exclude the reasonable inference that the offender intended merely to assault or cause grievous bodily harm, rather than to kill.

[15] In light of the foregoing, the conviction of attempted murder cannot be sustained. The evidence falls short of establishing, beyond reasonable doubt, the requisite intention to kill. The trial court misdirected itself in elevating the circumstances of an ordinary assault to attempted murder without sufficient evidential basis for the crucial element of intent to kill. I, cannot, confirm that the conviction is in accordance with real and substantial justice. However, the conduct of the accused clearly constituted a serious assault. The appropriate conviction, on these facts, is assault.

[16] Accordingly, I order as follows:

a. **The conviction of the accused on the charge of attempted murder be and is hereby quashed and, in its place, is substituted the following: -**
"The accused is found not guilty and acquitted of the charge of attempted murder but guilty of the permissible verdict of assault."
b. **The matter be and is hereby remitted to the court *a quo* for sentencing afresh on the new conviction.**
c. **In the event of an effective custodial sentence, the period that the offender has spent in custody shall count as part of the new sentence.**

MUTEVEDZI J …….

NDHLOVU J ……agrees